CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, November 14, 2018
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Myra L. Taylor called the meeting to order at 7:00 p.m. on Wednesday, November 14, 2018 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Myra L. Taylor, Vice Mayor Joseph L. Kelley, Commissioner Timothy Holmes, Commissioner John Riley, and Commissioner Matthew Pigatt. Also in attendance were: City Manager Yvette Harrell, City Attorney Vincent T. Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Mayor Myra L. Taylor.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Vice Mayor Kelley presented an award to Commissioner Holmes for all of his years of service as an elected official with the City and wished him all of the best on his retirement.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-2 and 13-3 (Vice Mayor Kelley).

NEW ITEMS:

A request was made to amend the agenda as follows:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING RESOLUTION(S) PURSUANT TO SECTION 4.5(B) OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, DIRECTING THAT AMOUNTS APPROPRIATED FOR CURRENT OPERATIONS FOR THE CURRENT FISCAL YEAR (FY 2017-2018) BE DEEMED ADOPTED FOR THE ENSUING FISCAL YEAR (FY 2018-2019) FOR A PERIOD OF FIFTEEN (15) DAYS, WITH ALL ITEMS PRORATED ACCORDINGLY, UNTIL SUCH TIME

AS THE COMMISSION ADOPTS AN ANNUAL BUDGET FOR THE ENSUING FISCAL YEAR (FY 2018-2019); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above title was read by City Clerk Flores.

It was moved by Commissioner Holmes, seconded by Commissioner Riley to amend the agenda to include the above resolution as item 14-1.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

7. APPROVAL OF AGENDA:

It was moved by Commissioner Riley, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

8. APPROVAL OF MINUTES:

Special Commission Meeting Minutes – October 2, 2018

These minutes were deferred until the next regular commission meeting.

Special Commission Meeting Minutes – October 4, 2018

It was moved by Commissioner Riley, seconded by Vice Mayor Kelley to approve the minutes from the Special Commission Meeting of October 4, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

Regular Commission Meeting Minutes – 10/10/2018

It was moved by Commissioner Riley, seconded by Commissioner Holmes to approve the minutes from the Regular Commission Meeting of October 10, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, thanked all of the outgoing commission for all of their years of service as elected officials and congratulated Commissioner Pigatt for his victory as the newly elected mayor. He said that he does not have any reports or announcements, but will take any concerns the commission has back to Commissioner Jordan.

Mayor Taylor thanked Mr. Gardner for his warm regards.

Cedric Brazle, Commissioner Jean Monestime's Office, District II, shared the sentiments of Mr. Gardner and said that he does not have any reports or announcements, but will take any concerns the commission has back to Commissioner Monestime.

Mayor Taylor thanked Mr. Brazle for his warm regards.

10. PUBLIC PRESENTATION:

Parks and Recreation Director, Charles Brown, proudly acknowledged the Opa-locka Hurricanes Football team for their victory over the season and making it to the championship.

11. CITIZENS' INPUT:

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, mentioned the mutual aid agreement with OLPD, North Miami Beach, and Sweetwater. She wants to know why there is a two year difference between the agreements. She also said the commission were not proactive with the last election and certain things were unethical during the campaigns. She hopes that the funds that were contributed shows up on everyone's campaign card.

Herbert Tarvin, 1761 Ali-Baba Avenue, #2, Opa-locka, FL, said all of the commission are doing great and he wants to unite the community. He has tried to meet with the commissioners, but was told that none of them were there. He knows that they have jobs and cannot be there full time, but he hopes to work with them to make the City better.

12. ACTION ITEMS:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CITY POLICE CHIEF TO ENTER INTO AND EXECUTE A VOLUNTARY COOPERATION AND

OPERATIONAL ASSISTANCE MUTUAL AID AGREEMENT (MAA) WITH THE CITY OF NORTH MIAMI BEACH, FLORIDA, SUBSTANTIALLY IN THE FORM ATTACHED, FOR LAW ENFORCEMENT SERVICES AND RESOURCES EFFECTIVE THROUGH AND INCLUDING NOVEMBER 17, 2021; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Vice Mayor Kelley, seconded by Commissioner Holmes for discussion.

Vice Mayor Kelley said he has reservations about the timeframe between this agreement and the previous one.

City Manager Harrell asked the chief to come before the commission and explain.

Police Chief James Dobson said each one should show an agreement of four (4) years and anything outside of that should be considered a scrivener's error.

Vice Mayor Kelley agreed.

There being no further discussion, the motion on the resolution passed by a 4-1 vote.

Vice Mayor Kelley	No
Commissioner Pigatt	Yes
Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CITY POLICE CHIEF TO ENTER INTO AND EXECUTE A VOLUNTARY COOPERATION AND OPERATIONAL ASSISTANCE MUTUAL AID AGREEMENT (MAA) WITH THE CITY OF SWEETWATER, FLORIDA, SUBSTANTIALLY IN THE FORM ATTACHED, FOR LAW ENFORCEMENT SERVICES AND RESOURCES EFFECTIVE THROUGH AND INCLUDING MARCH 31, 2023; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City manager*

The above resolution was read by Attorney Brown.

It was moved by Vice Mayor Kelley, seconded by Commissioner Holmes for discussion.

Commissioner Riley said he cannot go to Sweetwater because it is a risk and to have anything to do with Sweetwater would be a shame; they are also under oversight, but you don't hear anything about that. He does not support this item.

Vice Mayor Kelley said he is trying to understand why the dates are not adding up like the last item. He asked for clarity on the timeframe of the item.

City Manager Harrell said it is, as the chief explained, and this is a scrivener's error as with the previous item. The agreement is for four (4) years from 2018 which would expire in 2022. She asked Chief Dobson to come before the commission and further explain.

Chief Dobson said it is simply an error and the agreements are for four (4) years.

Commissioner Pigatt asked the chief to explain the purpose of the mutual aid agreements.

Chief Dobson stated that the agreements were to assist with law enforcement investigations that cross city lines and go into another jurisdiction; without this, officers would not be able to go into another city and investigate crimes that started in their respective cities. Any resources that would come back to the department also would benefit the officers under these agreements.

Commissioner Riley said that Sweetwater is not a neighbor of Opa-locka so why is this item on the agenda.

Mayor Taylor asked if there was an issue with cooperating with Sweetwater.

Chief Dobson said he is not aware of any issues with Sweetwater.

There being no further discussion, the motion on the resolution passed by a 3-2 vote.

Vice Mayor Kelley	No
Commissioner Pigatt	Yes
Commissioner Riley	No
Commissioner Holmes	Yes
Mayor Taylor	Yes

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A CONSENT AGREEMENT WITH THE MIAMI-DADE DEPARTMENT OF REGULATORY AND ECONOMIC RESOURCES, DIVISION OF ENVIRONMENTAL RESOURCES MANAGEMENT (DERM), SUBSTANTIALLY IN THE FORM ATTACHED, TO RESOLVE ALLEGED VIOLATIONS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Holmes, seconded by Commissioner Riley to pass the resolution.

The motion on the resolution passed by a 5-0 vote.

Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes

Commissioner Riley	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

14. NEW ITEMS:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING RESOLUTION(S) PURSUANT TO SECTION 4.5(B) OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, DIRECTING THAT AMOUNTS APPROPRIATED FOR CURRENT OPERATIONS FOR THE CURRENT FISCAL YEAR (FY 2017-2018) BE DEEMED ADOPTED FOR THE ENSUING FISCAL YEAR (FY 2018-2019) FOR A PERIOD OF FIFTEEN (15) DAYS, WITH ALL ITEMS PRORATED ACCORDINGLY, UNTIL SUCH TIME AS THE COMMISSION ADOPTS AN ANNUAL BUDGET FOR THE ENSUING FISCAL YEAR (FY 2018-2019); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

Mayor Taylor opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Kelley, seconded by Commissioner Pigatt to pass the resolution.

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

B. APPEALS:

16. PRDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S)/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING CHAPTER 21 – WATER, SEWER AND STORMWATER UTILITIES, CREATING A SECTION ENTITLED REGULATIONS GOVERNING MIAMI-DADE BILLING FOR THE CITY OF OPA-LOCKA, AND ADOPTING THE POLICIES AND PROCEDURES OF THE MIAMI-DADE COUNTY WATER AND SEWER DEPARTMENT TO BE USED IN CONJUNCTION WITH THE NEWLY CREATED SECTION; REPEALING ALL ORDINANCES IN CONFLICT HEREWITH; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE; *Sponsored by City Manager*

The above ordinance was read by Attorney Brown.

Mayor Taylor opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka. FL, asked what would be the impact on the community as she has heard the rates will be higher when the county takes over.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Pigatt, seconded by Commissioner Riley for discussion.

Commissioner Riley said there was a previous system that was used by the City and since it is being turned over to the county, they will be using their own system; it is basic housekeeping.

City Manager Harrell said this is only to make sure that the City adopts Miami-Dade County billing procedure as they will be handling it moving forward; she is not aware of anything else.

Commissioner Pigatt said he is very pleased that this transition is taking place. Now there will be accurate assessments of water usage throughout the whole City and will finally address the water issues.

Vice Mayor Kelley asked how this implementation will impact the bills that are high water bill issues that have had many complaints.

City Manager Harrell said they will still have to work on those bills that are ongoing with the hopes of correcting the billing with those customers who are affected. Once Miami-Dade County starts their billing process, it will start from zero.

There being no further discussion, the motion on the ordinance passed by a 4-1 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	No

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 15-31, THE CITY ZONING CODE, SECTION 22-143, CHAPTER 13 LICENSES AND BUSINESS REGULATIONS, ARTICLE VIII STREET AND MOBILE VENDORS, OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES; PROVIDING FOR DEFINITIONS, PERMIT AND APPLICATION REQUIREMENTS AND STANDARDS FOR SPECIAL EVENTS; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT HEREWITH; PROVIDING FOR SEVERABILITY; PROVIDING FOR INCLUSION IN THE CODE; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Brown.

Mayor Taylor opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 22nd place, Opa-locka, FL, said she understands what the commission is trying to do with this, but what have they done to ensure that the businesses are aware of the impacts. She thinks the commission should hire a public relations person to know how to address the public with these types of concerns and issues. Seven five percent of taxes are from businesses so they should be embraced.

There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Pigatt, seconded by Commissioner Holmes for discussion.

Vice Mayor Kelley said he has seen this type of item before and wants to know how people would know what the different types of fees were and how these fees were determined.

City Manager Harrell asked the Community Development Director to come before the commission and explain.

Community Development Director Gregory Gay said the fee schedule was created when the ordinance was first produced. The language and the schedule was contained in the body of the ordinance. They looked at what other municipalities were charging and tried to keep it in proportion with the size of the City.

Vice Mayor Kelley asked where the minutes were from the board that accompanies this. He does not see anything where it shows that meetings were held and discussions were had to determine these outcomes.

Commissioner Riley said the item describes the activities of some of the vendors, but it does not describe whether or not it is a mobile vendor.

Vice Mayor Kelley said there are a lot of things wrong with this item and he hopes that between now and second reading that this will be given a look.

There being further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING CHAPTER 7 OF THE CODE OF ORDINANCES OFHTE CITY OFOPA-LOCKA, FLORIDA, ENTITLED "BUILDING, HOUSING AND STRUCTURAL REGULATIONS" AMENDING SRTICLE II "HOUSING" TO CREATE THE POSITION OF MINIMUM HOUSING OFFICER; AND PROVIDING FOR PENALTIES AND ENFORCEMENT; PROVIDING FOR REPEALER, SEVERABILITY, CODIFICATION AND AN EFFECTIVE DATE (first reading/public hearing held on October 24, 2018). *Sponsored by Commissioner Riley*

The above ordinance was read by Attorney Brown.

Mayor Taylor opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said questions came up at first reading and she does not see where changes were made; it is the same document. If changes were made, she asked that the commission point out the revisions.

City Attorney Brown said this item is almost an exact duplicate of the item that was approved by Miami-Dade County Code Enforcement Division for Minimum Housing. Commissioner Riley attended the public hearing for the item and made sure that an ordinance would be adopted with the same format that the county used. He is not aware of any changes between first reading and second reading.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Riley, seconded by Commissioner Pigatt for discussion.

Commissioner Riley said there were no changes, but there was a difference between the 1963 ordinance that was on the books and the 2018 ordinance.

Vice Mayor Kelley asked if the role is currently being handled by the Building Official.

City Manager Harrell said, "Yes."

City Attorney Brown said that the Building Official has the authority to red flag buildings deemed to be under the minimum housing standards; it is an overlap in responsibilities, but it is not his primary responsibility.

Vice Mayor Kelley said he is concerned about what it entails. They may be mirroring the county's ordinance, but the county has sufficient staff to cover the position.

Commissioner Riley said the ordinance is to grant the City authority to do this where it did not have the authority before. Historically, the City has not had that, the state did. It will now afford the City the opportunity to have a minimum housing officer who will be trained by the county and will be enforced through the clerk's office and given back to the City. This will create a front that will pay for the administration or the activities of that officer.

Vice Mayor Kelley said he understands what Commissioner Riley is trying to do, but he does not want to create another subdivision that there are no resources for.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Riley	Yes
Commissioner Holmes	Yes
Vice Mayor Kelley	Yes
Commissioner Pigatt	Yes
Mayor Taylor	Yes

C. RESOLUTIONS:

17. CITY MANAGER'S REPORT:

City Manager Harrell said every first Saturday of each month, she and the executive staff will meet to discuss the ongoing issues with the water bills; she welcomed the commission to come and be a part of the process. She was under the impression that the FY 2018-2019 budget had been approved and this is not true. The state sent many recommendations for revision or corrections to many line items. She along with staff are working diligently to ensure all of the issues are addressed so that a balanced budget can be presented for adoption and approval. They are also working to have all of the pump stations operational. The compliance with DERM will allow for the pump stations to be removed from under a moratorium so that it can be opened up to new businesses. She thanked Mayor Taylor, Commissioner Riley, and Commissioner Holmes for their service as elected officials and hopes they will continue to provide input for the betterment of the City. She congratulated the mayor elect on his victory from the election and said she looks forward to working with him.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Each of the outgoing commissioners took turns recognizing their years of service, efforts and actions working on behalf of the City and its residents.

Vice Mayor Kelley said the Thanksgiving Fellowship/Community Feeding was a success and the residents were grateful. He wished the outgoing commission well in all of their future endeavors.

Commissioner Pigatt said goodbye to the outgoing commission.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Vice Mayor Kelley seconded by Commissioner Pigatt to adjourn the meeting at 9:06 p.m.

MAYOR

ATTEST:

CITY CLERK